MOBILE TELEPHONE NETWORKS PROPRIETARY LIMITED
(Registration number:1993/ 001436/07)
216 14th Avenue, Fairland, 2195
Private Bag 9955, Cresta, 2118, South Africa
Tel +2711 912 3000 Fax +2711 912 4670

COVER PAGE

SEQ NO:

ID/PASSPORT:

SABC CODE:

XDS Reference: ##xdsRef##

XDS Status: ##xdsStatus##

Directors: *MJ Harper (Chairman), CS Molapisi (Chief Executive Officer), D Molefe (Chief Financial Officer), MJ Bosman, SA Fakie, N Khan, T Leoka, TBL Molefe, FJ Moolman, RT Mupita, PD Norman, R Ramashia, J Schulte-Bockum, and SA Zinn*
Company Secretary *PT Sishuba-Bonoyi*
Reg. No. *1993/001436/07*
VAT Reg. *4630140434*

Sensitivity: MTN South Africa - Internal

Subscriber Application Form

MTN (Pty) Ltd	Consumer Contract:
Private Bag 9955 Cresta 2118	
TEL: 135 or 083135 (if not from an MTN no.)	Acc No.:.....
Email: customercare@mtn.com	Mobile No.:.....
Website: www.mtn.co.za	SABC Code:.....

Application Type

New Application ☐	Upgrade ☐	Transfer (Cession) ☐	Additional SIM ☐

Subscriber Details

Title: _ _ _ _ _ _	Surname:	Full Name	First Name .....
ID/Passport No.	SA Citizen Yes ☐ No ☐	Gender: None = Other Male ☐ Female ☐ Other ☐	Marital Status: None = Other Married ☐ Divorced ☐ Widowed ☐ Single ☐ Other ☐
Physical Address:	.....		Code: .....
Postal Address:	.....		Code: .....
H Tel.:	W Tel.:	Mobile:	Email: .....
Language:		Billing Delivery Method: Post: ☐ Email: ☐	
Residential Status Own ☐ Rent ☐ Other ☐	Period at address: Years:	Employer Name:	
Occupation:		Period of employment: Years:	Gross Personal Monthly Income: R..... If Staff suppress the value
Permission to Credit Vet:☐	Credit Card No.		Expiry Date:

Permission to Communicate

Direct Marketing	Mobile Financial Services	Digital Services
Personalised Offers ☐	MoMo ☐	MTN Play ☐
Promotions ☐	Insurance ☐	3rd Party ☐

Sensitivity: MTN South Africa - Internal

Other: Competitions ☐		Specials from Brands ☐

Preferred Communication method

SMS ☐	email ☐		

Application Details

Contract Initial Period	Deal Type	Offer	Handset	No. of Lines	Port MSISDN (If applicable)	MSISDN	MRC (incl. VAT) (Excl. all add-ons / VAS's)

Debit Order Banking Details

		Debit Order Date	
Payment Method Debit Order ☐ Credit Card ☐ Cash ☐ Electronic Funds Transfer ☐			
Please debit my account in favour of Mobile Telephone Networks (Pty) Ltd with the total amount due each month.			
Debit Day		Frequency of Debit	
Account Holder's Name and Surname			Account Type: Cheque ☐Savings ☐
Bank Name		Branch Code	
Expiry Date:		CVV No.	
Credit Card Type:		Acc/Credit Card No.	

SUBSCRIBER/THIRD PARTY	PRINT NAME

Debit Order Instructions

- I authorize Mobile Telephone Networks (Pty) Ltd, registration number 1993/ 001436/07 ("MTN") to debit my bank account for the monthly subscription fees set out in the Application form and all additional usage charges.
- The debit order instruction, which I have authorized must be debited monthly on the following day [xxx] of every month.
- The payment instructions will include a reference number (my MTN account number), which will reflect on your bank statement.
- I agree that the first debit order will be processed on _____ (date). The first debit order may be prorated and may include once off fees set out in the application form.
- Thereafter my debit order will be collected according to the date selected above.
- I agree that the debit order will continue to be debited in terms of this instruction until the Subscriber Agreement is cancelled or until this instruction is cancelled by me by providing MTN notice in writing of not less than 20 business days' notice.

Sensitivity: MTN South Africa - Internal

- If the date of the debit order falls on a non-processing day (weekend or public holiday), I agree that the payment instruction may be debited against my account on the following business day.
- MTN reserves the right to change your debit order date to follow your salary date in the event that your salary date is not fixed.

Declaration

SUBSCRIBER/THIRD PARTY	Signature

I agree to be credit vetted. I have read, understand, and agree to be bound by the terms and conditions attached and declare that the information herein is correct. In the event of a third-party defaulting, I am completely liable and responsible for any outstanding amounts owed to MTN.

Required attachments for application to be considered by MTN:
Copy of ID, Bank Statement, Proof of income, Proof of address, e.g., utility bill.

Consumer Protection Law Notices

You are directly affected by some of the clauses because they -

• limit or exclude our risk or liability,

• limit or exclude your rights and remedies against us,

• make you take on risk or liability, or

• make you acknowledge and voluntarily agree with certain statements.

Please pay special attention to all the clauses, as you will forfeit claims against us and other parties for certain losses, liabilities or damage. We may also have claims against you and hold you responsible to repay us further amounts, including costs or damages that we may have to pay. You must voluntarily confirm and agree with the statements in all the applicable clauses.

1. Contract

In addition to this document, there are other specific terms and documents that apply to the services you may access under the contract, such as the terms and conditions for specific promotions and package options.

You need to sign the attached application form and voluntarily agree to all the terms in all the documents that apply to both of us (including product terms, conditions, the terms of which are incorporated into these terms). There will only be a binding contract after we activate your SIM card. These terms must be preferred if there is any conflict in any of the contract documents.

You can get copies of all contract documents from any MTN store, or

online at www.mtn.co.za. Keep all documents we hand you when we deliver your mobile device and your MTN Invoice. Produce them when questioning anything relating to your contract or what we provide to you. In the contract, MTN or 'we' or 'us' or 'our' means Mobile Telephone Networks (Pty) Ltd (1993/001436/07).

2. Activation and period

Your application will be regarded as accepted when we activate your SIM card. This will allow you to use the MTN network services. We will be responsible for delays or cancellation (unless due to any cause beyond our control). We will regard your SIM card as activated at our premises and connection charges may apply to activations.

The initial contract period will be in the application form (usually 24-months unless otherwise specified) starting when the SIM card is activated. Unless we provide otherwise, your contract will continue month-to-month when the initial contract period ends, and the most recent product and service terms and conditions will apply to the month-to-month services.

3. Consent

You voluntarily consent to us using a third party (like a credit bureau) to record, assess your creditworthiness, or monitor your payments to us.

4. Your identity

You voluntarily agree to comply with all applicable laws, including Regulation of Interception of Communications and Provision of Communication-related Information Act, 2008 (RICA). You are legally required to verify your identity in a face-to-face process when registering a SIM card with us. Please produce your:

• original identity document, passport or refugee document; and

• proof of residential address.

If you transfer your SIM card to anyone other than a family member, both of you must visit our RICA officer to change ownership. The other person must also produce an identity document and proof of residence.

5. Theft, loss or damage

All risk for loss, use, damage or theft of a SIM card or mobile device passes on delivery of them to you (or to any person chosen by you to accept them for you).

If a SIM card is lost or stolen, you must request us to suspend it. We will blacklist the device and provide you with an ITC reference number. You are then legally required to report the crime to the South African Police Services and give them the ITC reference number. You remain liable for all costs and charges until we received your request to suspend your SIM card. You are responsible for insuring your mobile device against any loss, theft or damage. If your mobile device is lost, stolen or damaged, you still must pay for the contract.

Sensitivity: MTN South Africa - Internal

6. Ownership

We own the mobile device which may be included in your package option, however all risk for theft, loss or damage will pass to you on delivery. Ownership of the device will transfer to you at the end of the initial term of the contract. If you end your contract early, ownership will transfer to you once you have settled the termination payments as per clause 15. MTN reserves the right to blacklist the device should you fail to settle termination charges and or pay any outstanding amounts due, owing and payable on your bill.

7. SIM card and mobile device

The package option you select may include a mobile device in addition to mobile services. If your package option includes a mobile device, the mobile device forms part of your contract and cannot be separated from the contract.

Although you do not own the mobile number nor the SIM card, you may retain the mobile number if you port to another network or service provider. When using the SIM card and device on our network you must comply with our rules. You:

• must only use the services for lawful purposes;

• must only use a mobile device which is approved by ICASA or any other relevant authorities;

• must not reverse engineer, decompile, modify or tamper with any software on any SIM card or mobile device and you must prevent anyone else from doing so;

• must not use our SIM card, mobile device, network or services for any fraudulent or other unlawful purpose;

• must not use our services, to retain any direct financial gain, for example, where your financial gain results from the differences in termination charges payable by us for calls on our network or the difference between termination charges and your service charges;

• must not use or operate, whether directly or through a third party, any SIM card, mobile device or apparatus to route or re-route voice, data, messages or other network services on, from or to the network using a GSM gateway or any other apparatus commonly known as a 'SIM box';

• must not use a SIM card, mobile device or apparatus used to forward or divert network services with the intention of reducing your charges for that call;

• must not re originate international calls or refile incoming traffic or engage in any activity which may negatively affect the network and compromise the quality of service provided to you and other customers;

• must not change any number with another number to make international incoming or outgoing calls appear as locally originating or terminating calls;

• you may not sell, or attempt to sell, or otherwise provide commercial services using the SIM card, device or network to any third party without our express prior written consent; and

• you may not use a SIM card overlay to access services on our network.

If we suspect that you are not complying with the rules listed above, we will suspend your services immediately without notice to you.

8. Payment

You must pay us at our premises, or into our bank account, within 21 business days from the date we invoice you. You may pay by debit order. Our bank account and details will appear in each monthly bill we send you.

If you pay by debit order or by other electronic means, your bank (or other third party) is your agent. You carry the risk of the payment until we receive payment at our premises or at our bank.

If we receive returned debit orders from your bank, you will have to pay a debit order return fee. We may, subject to any legal restrictions, process your debit order via NAEDO (Non-authenticated early debit order) or change the debit order date. If you dispute any charge, you must still pay the undisputed amounts.

9. Bill limit and spend limit

As an MTN account holder, you have control over the lines linked to your account. A bill limit is the limit available to you once all recurring monthly charges have been deducted for your line(s). MTN will recommend a bill limit for you, which will be your default bill limit. You can customize the bill limit for each line under your account if you are not comfortable with the default bill limit. The bill limit is the maximum limit you allocate for each line under your account. The sum of all the bill limits for each line under your account may not exceed the credit limit available for the account. Should you fail to set your bill limit or chose not to set the bill limit, then you will be liable for all charges incurred on your account. Once your bill limit is set, each line can control their individual spend for that line through self-service channels i.e. USSD and My MTNApp by setting a spend limit. You can adjust the spend limit for each line, however the combined spend limit for all the lines under your account may not exceed the bill limit. If the spend limit reaches the bill limit, the account holder may adjust the bill limit and increase the spend limit.

10. Credit limit

To protect you and us from you incurring charges you might not be able to pay, we may limit the charges you may incur in any month and may notify you of any change to this credit limit.

We will disclose the credit limit on the bill or invoice and set it according to our credit-vetting criteria. To protect us we may suspend your service if you exceed the credit limit. Should this occur, please seek assistance from our call centre or visit the nearest store. You will still

have to pay the actual charges if they exceed the credit limit. This is not an agreed charge or spend limit between us. We cannot promise to limit charges incurred above the credit limit.

11. International roaming

At least five business days before you leave your country of residence you must ask us to permit you to use your SIM card for our services while out of the country. You may be required to pay us a security deposit before we activate your SIM card for roaming services.

When you apply, we will provide a copy of the specific terms relating to international roaming. The terms are also available in store and on our website. Please visit these pages before you travel and read all the relevant information.

International roaming is expensive. Before you leave, check our website for details on charges for international roaming. We also strongly advise that you check your user manual for your mobile device and learn how to disable voice, SMS, data, Wi-Fi, application or email settings on your mobile device before you leave.

12. Charges

You voluntarily confirm that the package option or price- plan has been explained to you and that you understand and voluntarily agree to it. You voluntarily agree to accept the charges included with each package option or price-plan (either with or without a mobile device).

You must pay all the applicable charges due to us at the rates detailed on our website, your package option or price-plan terms. After any promotion ends, charges will revert to the standard charges.

By notifying you in advance, we may amend charges from time to time and if you do not accept them, you may end the contract by notifying us, subject to clause 15. **13. Additional use**

You will have to pay additional charges for additional use if you exceed the number of voice minutes, SMSs or data included in your package option or price-plan.

14. Your right to terminate

By notifying us, you may end the contract, but you may still have to pay termination charges.

You may end the contract by notifying us before the end of the initial contract period, or before you 'port' to another network or service provider but you will be liable for termination charges.

When the contract continues a month-to-month basis you may end it at the end of a month, provided you notify us before the end of the relevant month.

If we fail to remedy any alleged breach of contract, you may end the contract, but only after you:

• Notify us of the alleged breach;

• specify the nature and extent of the breach; and

• state your intention to end the contract if we do not remedy the breach within 20 business days.

By notifying you in advance, we may change, withdraw, amend or substitute:

the contract or the charges;

• any repair, replacement or refund terms;

• the charges, price list, credit limit or spend limit; or

• any product terms and conditions or services forming part of your package option or price-plan.

If you do not accept them, you may end the contract by notifying us, subject to clause 15.

15. Termination payments

If you breach the contract or end the contract before the initial contract period or port before the end of the initial contract period, you must pay us termination fees under the cancellation provisions of applicable consumer protection legislation.

By ending the contract, you will also have to pay:

• the current migration fee, upgrade fee or administration fee in the price list on our website, when a package or price-plan migrates or is upgraded to another package;

• the monthly subscription up to the date it ends;

• but if that date is not at month end, it will be pro- rated for the last month;

• all usage charges up to and including the date the contract ends;

• all other amounts that we may be allowed to charge you up to that date, or for failing to pay before or after that date;

• an additional one month's subscription;

• the termination fee which shall be calculated with reference to the balance of the value of the mobile device; and

• any collection fees and legal costs as determined on a just and equitable basis by the court.

• You will also have to pay us the termination fee which shall be calculated with reference to the balance of the value of your mobile device if you migrate to:

• a package option with a lower mobile device subsidy than the package option you are migrating from; or

• a price-plan with no mobile device.

16. Our right to terminate

Without limiting any of our other rights, we may end the contract forthwith on notice to you if:

• you fail to pay your invoice on its due date; or

• you fail to comply with our rules set out in clause 7 Sim card and mobile device; or

• you contravene any applicable laws or binding rules, codes or standards (especially electronic communication regulations); or

• you are deprived of legal capacity, including, provisional or final sequestration or liquidation or business rescue; or

• our license, authorising and empowering us to provide you with access to our services, is withdrawn or cancelled; or

• you breach any terms and conditions of this contract; and

• you fail to remedy any material breach of contract within a reasonable time after we notify you of your breach.

17. Access to services

We cannot accept liability for any breach or failure to comply with any obligations arising from any cause beyond our control, including:

network maintenance;

• technical network problems;

• cancellation of operating licenses;

• acts beyond human control, such as natural disasters;

• governmental acts or omissions, such as controls, restriction and prohibitions whether local or national;

• fraud perpetrated by independent third parties;

• scams, phishing, spamming or any other related unlawful activities by third parties;

• third party defaults, such as by suppliers, agents or sub- contractors; and

• coercive collective action, such as strikes, lockouts and protests.

18. Liability

Subject to a fixed limit, we accept liability for loss or damages suffered by you, which are directly caused by us and we are responsible for in law, unless:

• our services are interrupted, suspended or cancelled through no neglect or failure to act by us (or any of our employees or agents); or

• we are legally allowed to suspend your access to, or use of, our services; or

• it results from using any mobile device we supply to you relating to the contract (including the use of any self-service features available to you); or

• it results from any fraudulent activity, including online banking, cell phone banking, application and/web-based banking, SIM cards or number portability; or

• it results from any act or omission beyond our control or that of our employees or agents.

We do not accept liability for loss or damage if:

• we don't suspend your services if you exceed the credit limit; or

• we fail to supply or deliver any mobile device or SIM card on the required date or time.

Our cumulative maximum liability for all claims, actions, demands and proceedings, irrespective of cause is limited to one month's subscription you actually pay us in terms of the contract.

19. Notice and address

Where you must give us notice, it must be in writing, but not by SMS or telefax unless otherwise stated. You must give it at least 20 business days before or after a certain event. You must use the contact details indicated on your bill or invoice.

Where we must give you notice it may be in any form of writing (including SMS and email). We must give it at least 20 business days before or within 20 business days after a certain event. We may only reduce or extend the period when absolutely and legally necessary to do so. Where applicable we may sign the notice electronically.

Sensitivity: MTN South Africa - Internal

Either of us may change our physical addresses to any other physical address in South Africa by notifying the other. All legal documents will be delivered to those addresses.

20. Privacy policy

We respect your privacy and you voluntarily agree to abide by our privacy policy, which can be viewed at www.mtn.co.za.

21. Your agreement

You voluntarily confirm having read and understood the terms and documents forming part of the binding contract and voluntarily agree to be bound by them.

_____

Subscriber name:

Date:

Place: